

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: Img on 8-24-26
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Castellanos v. Rodriguez**
Superior Court Case No. 24CECG02242

Hearing Date: August 25, 2026 (Dept. 502)

Motion: (1) by Defendant to Set Aside Default
(2) by Plaintiffs for Default Judgment

Tentative Ruling:

To take Defendant Francisco Rodriguez' motion to set aside default off calendar, as no moving papers have been filed as directed in the court's July 9, 2026 order following the voiding of defendant's moving papers filed June 23, 2026.

To deny Plaintiffs' Request for Default Judgment, without prejudice.

Explanation:

Plaintiffs Avelino Castellanos and Martha Castellanos are seeking default judgment of their complaint alleging causes of action for breach of contract, judicial foreclosure, fraud and deceit, and suppression of fact. Default was entered against defendant Francisco Rodriguez on July 26, 2024. In their Request for Court Judgment, plaintiffs seek a money judgment in the amount of \$402,679.48, including \$386,665.15 in damages, \$435 in costs, and \$15,579.33 in attorney fees. Plaintiffs additionally seek to have the court order the judicial foreclosure sale of property owned by defendant securing a promissory note.

"A judicial foreclosure is a court proceeding, usually brought by the trustee or beneficiary against the trustor and all parties with recorded interests in the property. (§ 726; *Diamond Benefits Life Ins. Co. v. Troll* (1998) 66 Cal.App.4th 1, 6, 77 Cal.Rptr.2d 581 (*Diamond*))" (*Robin v. Crowell* (2020) 55 Cal.App.5th 727, 743, emphasis added.)

The complaint should allege the following:

- (1) The obligation, e.g., the execution of a promissory note, usually pleaded verbatim. (See *supra*, § 576.)
- (2) The security: execution of the mortgage or deed of trust to secure the obligation, and its recordation (which establishes priority over subsequent liens). (See *infra*, § 674.)
- (3) Plaintiff's ownership of the note and mortgage, and if plaintiff is a transferee and not the original payee or mortgagee, an allegation of assignment to plaintiff. (See *infra*, § 674.)
- (4) The default of defendant mortgagor. (See *infra*, § 675.)

(5) The interests of defendants other than the mortgagor. (See *infra*, § 676.)

(6) Attorneys' fees and other expenses. ...

(5 Witkin, Cal. Proc. (6th ed. 2026) Pleading, § 673.)

In the case at bench, it is clear from the face of the complaint that plaintiffs have failed to name all persons having an interest in the property as defendants. Plaintiffs allege defendant's wife has an interest in the property and she is not named as a defendant. There are no allegations regarding other recorded interests on the property other than plaintiffs' interest created by the deed of trust. As such, the cause of action is insufficiently pleaded and no judgment of judicial foreclosure can properly be entered. (See, *Rose v. Lawton* (1963) 215 Cal.App.2d 18, 19-20; *Williams v. Foss* (1924) 69 Cal. App. 705, 707-708.)

Further, in seeking a judgment in their favor on their cause of action for judicial foreclosure plaintiffs are asserting priority over all other recorded interests on the property which likely include a deed of trust securing a mortgage used by defendant and his wife to purchase the property. Plaintiffs have provided no authority to allow the sale of the property by a party that is likely a junior lienholder without notice and to the detriment of a senior lienholder.

To the extent plaintiffs are also seeking a money judgment in connection with the alleged breach of contract, damages in the amount of \$386,665.15 are not supported by a ledger or other accounting evidence showing payments made and the balance due. The balance is not consistent with the declaration of Avelino Castellanos attesting to a payment of \$26,345.91 toward the principal amount of \$400,000 owed pursuant to the Settlement Agreement.

Plaintiffs request attorney fees in the amount of \$15,579.33 billed by attorneys of records for plaintiffs incurred in the prosecution of this action. (Cowin Decl., ¶¶ 2-4.) Attorney fees upon default judgment are calculated using Appendix A1 of the Fresno County Superior Court Local Rules. The fees sought exceed those allowed under the Local Rules.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 8-21-26 .
(Judge's initials) (Date)